

Incident Alert 0021. TLP CLEAR.			Date	Breakout Scale
Title	FR – Platforms Failing to Uphold the French Elections Silent Period		16/07/2024	2

Summary

- Six social media platforms were audited to determine if they upheld the silent period of the French legislative elections.
- None of the platforms had sufficiently precise and responsive content moderations systems in place.
- 99k violating posts were identified and 2 platforms' reporting systems fell short of their DSA obligations.
- Cases flagged to the platforms during the silent period and to the French and EU regulators after the elections.

Incident – When, Who did what, to say what, to whom, why?

French law mandates a period of electoral silence before elections, prohibiting the dissemination of electoral propaganda in traditional media and online platforms, which must remove any reported content. European law (Digital Services Act– DSA) also requires platforms to provide a reporting mechanism for illegal content and mitigate risks of its widespread dissemination.

A study on compliance by 6 major platforms during the 2024 legislative elections found:

- X: Did not moderate reported content, had an inoperative reporting system in the second round, and failed to mitigate illegal content dissemination.
- Facebook and Instagram: Most efficient and responsive in the first round but slow in the second.
- YouTube: Did not address reports before the election silence period ended; no reported content was deemed illegal.
- TikTok: Failed to address reports timely; removed the majority of reported content the day after the silence period ended. Its reporting form does not allow multiple content reporting.
- LinkedIn: Had no reporting mechanism in the first round and an incomplete response in the second.

Overall, none of the platforms had a sufficiently precise and responsive content moderation system for the electoral silence period as required by French law.

Narrative

N/A

Impact

Content reported: 99k posts on X. 39 on LinkedIn. 30 on YouTube. 46 on Facebook. 34 on Instagram. 15 on Threads, 36 on TikTok.

Key Objectives and Behaviours (DISARM Red Framework)

N/A.

Recommendations

- Action Taken: social media platforms alerted on the day of the silent period.
- Action Taken: alerted ARCOM and the European Commission.

Report	Topic	Evidence	Authors	Content type	Platforms
Link	French Audit.	Elections, Drive	Bastien Carniel, Science Feedback Saman Nazari , Alliance4Europe	Posts, videos, images.	Meta, TikTok, X, LinkedIn, YouTube.